

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 7, 2023, a complaint was filed with the Spanish Agency for Data Protection against DEALS99.COM (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that he has attempted to request the deletion of his personal data from the responsible party of the website ***URL.1, using the following means: the email address ***EMAIL.1 (provided on the website and which does not receive messages), the email address ***EMAIL.2 (linked to the Chrome extension AliSaver, offered by deals99, and from which he receives no response), and contacting the domain registrar (**URL.2) to try to reach the domain owner through them.

Relevant documentation provided by the complainant:

- Copy of the email sent to ***EMAIL.1.
- Copy of the emails sent to ***EMAIL.2.
- Copy of the email exchange maintained with ***EMAIL.3.

SECOND: On July 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Upon analyzing the complained website, it is verified that there is no document identifying the data controller or other requirements mandated by the regulations on Personal Data Protection or the Services of the Information Society. Furthermore, the pages "About," "Contact," "Terms," and "Privacy" are only available in English.

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The following aspects have also been verified:

- The website offers its services, among other languages, in Spanish, French, and Portuguese, indicating that products and services are being offered to countries within the territory of the European Union.
- The service of the page consists of obtaining a commission from purchases that end on AliExpress. The prices of the products published are in dollars.
- The terms and conditions of the page (8. Governing Law; Venue and Jurisdiction) state that only Texas law – USA will apply.

Having informed the responsible parties of the website through the contact email listed on the "Privacy" and "Contact" pages of the website in question regarding the complaint received by this Agency, it is verified that ***EMAIL.2 does not accept messages. Therefore, the user has no way to exercise the rights of the interested party or to obtain information about the processing of their personal data. Since no other contact method is found on the complained website, a search is conducted in the Internet domain registry using the "whois" tool. This inquiry confirms that the domain registrar is the U.S. entity GoDaddy LLC, which only offers a mechanism for sending a contact request to the domain owner without allowing text input or file attachment.

On September 11, 2023, a contact request was sent through this channel, and no email has been

received from the domain owner.

When requested, GoDaddy LLC was asked to inform this Agency whether the domain owner is a citizen or resident of the European Union, and in that case, to provide the identifying data and address of this owner; no written response has been received.

Finally, since the footer lists "Akarat Co., Ltd." as the owner of the website, an internet search is conducted, finding only one company based in Lebanon that responds to this name, but whose activity is in the real estate sector with no relation to the trade of consumer products via the internet.

There are records in which the intervener is GODADDY, in which they stated (translated):

"[...] GoDaddy.com maintains its records outside of Spain and therefore is not subject to Spanish law. Therefore, GoDaddy.com cannot provide you with any information without a properly issued subpoena or court order. The subpoena or order must be issued by a state or federal court located in the United States."

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided for in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Transparency of Information, Communication, and Modalities for Exercising the Rights of the Data Subject

Article 12 of the GDPR stipulates:

"1. The data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14, as well as any communication under Articles 15 to 22 and 34 relating to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another way.

4. If the data controller does not act on the data subject's request, it shall inform them without undue delay, and at the latest within one month of receiving the request, of the reasons for not taking action

and of the possibility of lodging a complaint with a supervisory authority and seeking judicial remedies.

5. The information provided under Articles 13 and 14, as well as any communication and any action taken under Articles 15 to 22 and 34, shall be provided free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred in providing the information or communication or taking the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, where the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, it may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. The icons presented in electronic format shall be machine-readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons."

III

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR provides as follows:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing under Article 21, paragraph 1,

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and no other legitimate reasons for processing prevail, or the data subject opposes the processing in accordance with Article 21, paragraph 2;

- d) the personal data have been processed unlawfully;
- e) the personal data must be erased to comply with a legal obligation established in Union or Member State law applicable to the data controller;
- f) the personal data have been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform the controllers who are processing the personal data of the data subject's request to erase any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) to comply with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller;

- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims."

IV

Conclusion

In order to identify the person or persons holding the website subject to the complaint, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the admission decision or from the date of the decision to initiate when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, it has not been possible to determine the ownership of the website indicated in the complaint.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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